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ARVA RICE
INTERIM CHAIR

March 21, 2023

The Honorable Keechant L. Sewell
Police Commissioner of the City of New York
New York City Police Department
One Police Plaza
New York, New York 10038

Re: **Report on the Administrative Prosecution Unit (“APU”)
Fourth Quarter of 2022**

Dear Commissioner Sewell:

This report will address the following matters: (i) verdicts issued by an Assistant Deputy Commissioner of Trials (“ADCT”); (ii) the treatment of Administrative Prosecution Unit (“APU”) pleas by the Police Commissioner; (iii) the retention of cases under Provision Two of the April 2, 2012 Memorandum of Understanding (“MOU”); (iv) the dismissal of zero (0) cases by the APU; (v) cases administratively closed by the Police Commissioner; (vi) the size of the APU's docket; and (vii) the length of time to serve Respondents.

I. Guilty Verdicts Upheld and Guilty Verdicts Reversed by the Police Commissioner

In the fourth quarter of 2022, seven (7) CCRB verdicts for trials conducted before an ADCT were finalized. The APU treats each officer against whom an allegation is substantiated as a separate case.¹ Of the seven (7) cases, three (3) resulted in guilty verdicts that were upheld by the Police Commissioner. The guilty verdicts are discussed further below:

Case One, Guilty Verdict 201903287 LT Eric Dym

In April 2019, at approximately 4:30 p.m. in the Bronx, the Victim, a male in his early thirties, was walking down a street. The Victim was walking at a normal pace when he saw a vehicle reversing down the street towards him. The Victim took note of the vehicle and continued walking. Lieutenant Eric Dym [the Respondent] and another officer exited the vehicle and approached the Victim. Lt. Dym ran up behind the Victim while the other officer ran in front

¹ The APU treats each officer as a separate “case.” As such, all APU data discussed in this report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word “case” should be interpreted as “case against a single officer.”

of him. They each grabbed one of the Victim's arms. The officers approaching and grabbing the Victim was captured on surveillance video. Lt. Dym told the Victim to "stop right there" and the Victim complied. Lt. Dym proceeded to frisk the Victim's pants and jacket pockets. The Victim asked why he was stopped and frisked. Two or three people gathered around and told the officers that they were being recorded on cellphone video. Lt. Dym asked the Victim "you want to fight me?" and the Victim responded "yeah, I will". Lt. Dym handcuffed the Victim and transported him to the precinct where he issued him a summons.

On September 30th, 2020, the Board substantiated three (3) total allegations²: three (3) Abuse of Authority allegations against Lt. Dym for stopping the Victim, frisking the Victim, and issuing a summons to the Victim. APU filed and served Charges and Specifications with a penalty recommendation of twenty-six (26) days' vacation forfeiture. On January 6th, 2022, January 11th, 2022, January 24th, 2022, and May 5th, 2022, a trial was held before ADCT Paul Gamble. On June 9th, 2022, ADCT Gamble issued his decision finding Lt. Dym guilty on all three counts. The decision was rendered after the implementation of the Disciplinary Matrix.

ADCT Gamble stated that he "while [Victim]'s demeanor during his interaction with Respondent, as captured on the video recording, could be objectively described as annoyed, his reaction to the encounter did not appear to me to be disproportionate to the involuntary interruption of his freedom of movement and bodily integrity." ADCT Gamble stated that the "credible, relevant evidence establishes that the encounter began when Respondent began chasing after [Victim] and reached a critical phase when he grabbed [Victim]'s shoulder and wrist, along with Sergeant Bautista. I find that at that point, [Victim] was not free to leave."

ADCT Gamble found that "it is undisputed that neither Respondent nor Sergeant Bautista was in uniform; similarly, they were riding in an unmarked police vehicle." ADCT Gamble found that "Respondent's judgment that [Victim] was dressed inappropriately for the weather was subjective and not supported by the independent, credible evidence...it still would not have formed a basis for initiating a request for information without additional suspicious behavior on [Victim]'s part." ADCT Gamble found that there "was no evidence that [Victim] had engaged in any suspicious behavior, despite Respondent's belief that he had done so...Because I have found that Respondent lacked reasonable suspicion to stop [Victim], the frisk he conducted after initiating the stop also lacked reasonable suspicion."

ADCT Gamble stated that "despite the factual allegations of the summons, [Victim] displayed no behavior that could be construed as menacing or threatening...it is illogical for Respondent to assert that [Victim] threatened him when Respondent was the one who asked [Victim] if he wanted to fight. While [Victim] answered that he did, his response was equally as absurd as Respondent offering an invitation to mutual combat to someone he was in the process of detaining." ADCT Gamble found that "the absence of any evidence that [Victim] had the intent to cause public harm and the absence of facts supporting the allegation on the summons leads to the conclusion that Respondent lacked a sufficient legal basis for directing the issuance of a summons for disorderly conduct."

ADCT Gamble recommended a penalty of eighteen (18) days' vacation forfeiture for Lt. Dym. On September 7th, 2022, the Police Commissioner approved ADCT Gamble's recommendations and imposed the recommended penalty.

² The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

Case Two, Guilty Verdict 201907671 PO Rafael Tatis

In August 2019, at approximately 9:00 a.m. in Brooklyn, the Victim, a Black male in his early thirties, was in police custody in a holding cell. The Victim asked for water and Police Officer Rafael Tatis [the Respondent] told him that he would give him an empty cup to get water from the sink that was in the holding cell. PO Tatis had the Victim place his hands in the cell door slot so that he could remove the Victim's handcuffs. He removed them and handed the Victim a cup. The Victim threatened to splash PO Tatis with water. PO Tatis kicked the cell door slot closed on the Victim's arms causing them to become caught in the slot. The incident was captured on the holding cell cameras.

On January 7th, 2021, the Board substantiated one (1) total allegation³: one (1) Use of Force allegation against PO Tatis for using physical force against the Victim. APU filed and served Charges and Specifications with a penalty recommendation of ten (10) days' vacation forfeiture. On August 16th, 2022, a trial was held before ADCT Paul Gamble. On September 21st, 2022, ADCT Gamble issued his decision finding PO Tatis guilty on the sole count. The decision was rendered after the implementation of the Disciplinary Matrix.

ADCT Gamble stated that it "is uncontroverted that Respondent twice kicked a cell slot door in a cell area while he was on duty: Respondent admitted doing do in his trial testimony and the video evidence clearly depicts him kicking the door...the video evidence shows that Respondent's first kick caused the door to swing upward and strike [Victim]'s right hand." ADCT Gamble found that any "threat posed by [Victim] at that time was mitigated by his position behind a locked cell door. Even if I credit Respondent's assertion that [Victim] threatened to throw water on him, that would not constitute a threat warranting immediate pre-emptive force."

ADCT Gamble recommended a penalty of twenty (20) days' vacation forfeiture for PO Tatis. On November 23rd, 2022, the Police Commissioner approved ADCT Gamble's recommendations and imposed the recommended penalty.

Case Three, Guilty Verdict 201802481 LT Kurtis Rose

In March 2018, at approximately 8:30 p.m. in the Bronx, Victim 1 – a fourteen-year-old Black male and Victim 2 – an eight-year-old Black male were walking home when they met up with two friends [Individual 1 and Individual 2] and Victim 3 – a brother of Victim 2. The Victims and their friends picked up some sticks and chased each other on the sidewalk. They were dropping their sticks as Victim 1 saw multiple police vehicles approach their group. One of the vehicles over a loudspeaker told the group to drop the sticks and get against a wall. Police Officer Justin Hoff [Respondent 1] exited one of the vehicles with his gun drawn as the group complied with the police directive. Police Officer Michael Soto [Respondent 2] and PO Hoff then frisked Individual 1 and Individual 2. Lieutenant Kurtis Rose [Respondent 3] arrived at the incident location and authorized the handcuffing and transportation to a precinct of Victim 1 and Victim 2. The incident was captured on BWC.

³ The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

On January 16th, 2019, the Board substantiated two (2) total allegations⁴: two (2) Abuse of Authority allegations against LT Rose for detaining Victim 1 and Victim 2. APU filed and served Charges and Specifications with a penalty recommendation of thirty (30) days' vacation forfeiture. On January 24th, 2022, and March 3rd, 2022, a trial was held before ADCT Jeff Adler. On April 7th, 2022, ADCT Adler issued his decision finding LT Rose guilty on both counts. The decision was rendered after the implementation of the Disciplinary Matrix.

ADCT Adler found that Lt. Rose “did not witness any of the conduct leading to the stop of the individuals.... officers informed him that they had observed the youths running in the street, and that a couple of them possessed sticks and were fighting with them. The youths denied that they attacked anyone...officers pointed out to Rose the two individuals who had been in possession of the sticks, [Victim 1] and [Victim 2].” ADCT Adler found that “there was no reliable evidence that the youths had been doing anything more than playing with sticks...there was no corroboration that the youths had, in fact, been chasing another individual, as opposed to just playing amongst themselves...Rose’s decision to have two youths, ages 8 and 14, handcuffed and brought to the precinct, constituted an improper use of his authority.”

ADCT Adler recommended a penalty of twenty (20) days' vacation forfeiture for LT Rose. On September 7th, 2022, the Police Commissioner approved ADCT Adler’s recommendations and imposed the recommended penalty.

II. Not Guilty Verdicts Upheld by the Police Commissioner

In the fourth quarter of 2022, seven (7) CCRB verdicts for trials conducted before an ADCT were finalized. The APU treats each officer against whom an allegation is substantiated as a separate case.⁵ Of the seven (7) cases, four (4) resulted in not guilty verdicts that were upheld by the Police Commissioner. The guilty verdicts are discussed further below:

Case One, Not Guilty Verdict 201802481 PO Justin Hoff

This case is from the same incident described in Case Three (3) (from the Guilty Verdicts section), for Police Officer Justin Hoff [Respondent 1]. In March 2018, at approximately 8:30 p.m. in the Bronx, Victim 1 – a fourteen-year-old Black male and Victim 2 – an eight-year-old Black male were walking home when they met up with two friends [Individual 1 and Individual 2] and Victim 3 – a brother of Victim 2. The Victims and their friends picked up some sticks and chased each other on the sidewalk. They were dropping their sticks as Victim 1 saw multiple police vehicles approach their group. One of the vehicles over a loudspeaker told the group to drop the sticks and get against a wall. Police Officer Justin Hoff [Respondent 1] exited one of the vehicles with his gun drawn as the group complied with the police directive. Police Officer Michael Soto [Respondent 2] and PO Hoff then frisked Individual 1 and Individual 2. The incident was captured on BWC.

⁴ The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

⁵ The APU treats each officer as a separate “case.” As such, all APU data discussed in this report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word “case” should be interpreted as “case against a single officer.”

On January 16th, 2019, the Board substantiated five (5) total allegations⁶: five (5) Abuse of Authority allegations against PO Hoff for stopping Victim 1, Victim 2, Victim 3, Victim 1's friends [Individual 1 and Individual 2], drawing his gun, and frisking Victim 1's friends [Individual 1 and Individual 2]. APU filed and served Charges and Specifications with a penalty recommendation of thirty (30) days' vacation forfeiture. On January 24th, 2022, and March 3rd, 2022, a trial was held before ADCT Jeff Adler. On April 7th, 2022, ADCT Adler issued his decision finding PO Hoff not guilty on all five counts. The decision was rendered after the implementation of the Disciplinary Matrix.

ADCT Adler found that it was "undisputed that Hoff did stop the individuals in question. He responded to the location within seconds of receiving a radio call that there was a group of individuals with weapons, including a machete, chasing a male...he saw individuals 'frantically' running back and forth on the street and in between cars. Hoff exited his RMP, identified himself as a police officer, and ordered the individuals to stop." ADCT Adler found that "Hoff ultimately did not discover any corroboration that a third person was, in fact, being chased or menaced...two sticks were recovered, the officers did not find a machete at the scene. Nevertheless, at the time he initiated the stop, Hoff had a reasonable expectation, based on the 911 call...from a caller who...provided a callback phone number...coupled with Hoff's observations at the location, provided reasonable suspicion that these were the individuals who were the subject of the 911 call." ADCT Adler found that "It was dark, and Hoff could not see if the individuals were, in fact, holding any of the weapons identified in the 911 call...He ordered the youths to show their hands, but they did not comply...Hoff, who was standing within 10 feet of these individuals, drew his firearm, and pointed it down...This action produced immediate results, as the youths stopped running and placed their hands in the air." ADCT Adler found that "Hoff acknowledged that he did frisk one of the stopped individuals...because he had observed him holding a stick, and was concerned that there might be additional weapons." ADCT Adler found that "at the time of the frisk events were still rapidly unfolding, and Hoff was in a precarious position with a reasonable concern for his safety."

ADCT Adler found PO Hoff not guilty on all counts. On September 7th, 2022, the Police Commissioner upheld the not guilty verdict.

Cases Two and Three, Not Guilty Verdicts 201902457 PO Lorvin Fernandez and LT Eric Dym

In March 2019, at approximately 1:40 a.m. in the Bronx, the Victim, a Black male in his early twenties was in a police custody at a precinct stationhouse. Lieutenant Eric Dym [Respondent 1] asked the Victim if he had anything in his crotch. The Victim denied having anything in his crotch and Lt. Dym told officers to perform a strip-search of the Victim. The Victim while in handcuffs was taken to a holding cell where Lt. Dym held the Victim against a cell wall and bent the Victim over, pulled down his underwear and performed a cavity search of the Victim's buttocks. The Victim was then carried out of his holding cell by a group of officers towards a bathroom. Police Officer Lorvin Fernandez [Respondent 2] was carrying the Victim's legs and lost his grasp on them. PO Fernandez then punched the Victim on the left side of his body. The officers continued to carry the Victim to the bathroom and the Victim dropped his weight to the floor. PO Fernandez, Lt. Dym, and other officers pinned the Victim down to the

⁶ The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

ground. Lt. Dym placed his knee on the left side of the Victim's head as the other officers held the Victim down on the ground. Lt. Dym removed his knee from the Victim's head and punched the Victim in his chest. The incident was captured on a precinct camera.

On April 21st, 2021, the Board substantiated six (6) total allegations: two (2) Abuse of Authority allegations against Lt. Dym for strip searching the Victim⁷ and for performing a cavity search on the Victim⁸, two (2) Use of Force allegations for using physical force against the Victim⁹ and for restricting the Victim's breathing¹⁰ and two (2) Use of Force allegations against PO Fernandez for using physical force against the Victim twice¹¹. APU filed and served Charges and Specifications with a penalty recommendation of termination for both Lt. Dym and PO Fernandez. On January 6th, 2022, January 11th, 2022, January 24th, 2022, and May 5th, 2022, a trial was held before ADCT Paul Gamble. On June 9th, 2022, ADCT Gamble issued his decision finding Lt. Dym and PO Fernandez not guilty on all counts. The decision was rendered after the implementation of the Disciplinary Matrix.

ADCT Gamble stated that based "upon a comparison of the hearsay statement [Victim] provided, the video evidence of the interactions he had with police in the holding area, and the medical records of his visits...I find [Victim] to be an unreliable narrator. His statement is factually inaccurate in material aspects and vague in others." ADCT Gamble found that "Respondent Fernandez admitted in his testimony that he used 'hand strikes' and 'knee strikes' in his attempts to subdue [Victim]...he admitted...that he punched [Victim] twice in the back of his shoulders after [Victim] kicked him between his legs. He further admitted that he placed his leg, and eventually his foot, on the back of [Victim]'s shoulders to restrain him while he struggled on the floor of the holding cell area." ADCT Gamble found that "[Victim]'s response to the question of whether he was sure he had nothing hidden in his crotch...constituted sufficient grounds for Respondent Dym to reasonably suspect that a weapon may have been concealed on [Victim]'s person in such a manner that it had not been discovered during previous searches." ADCT Gamble found that "[Victim]'s actions of head-butting police officers, kicking, squirming, and turning his body, while Respondents and other police officers attempted to search him, constituted active resistance." ADCT Gamble found that "the force used by Respondents was proportional to the resistance offered by [Victim] and never escalated to the point where it became punitive."

ADCT Gamble found Lt. Dym and PO Fernandez not guilty on all counts. On November 23rd, 2022, the Police Commissioner upheld the not guilty verdicts.

⁷ Per Disciplinary matrix – a procedural violation strip search of a person has a mitigated penalty of 5 vacation days' forfeiture, a presumptive penalty of 10 vacation days' forfeiture, and an aggravated penalty of 20 vacation days' forfeiture.

⁸ Per Disciplinary matrix – non-deadly force against another that results in physical injury has a mitigated penalty of 10 suspension days, a presumptive penalty of 10 suspension days + 10 vacation days' forfeiture, and an aggravated penalty of termination.

⁹ Per Disciplinary matrix – application of a chokehold has a mitigated penalty of forced separation and a presumptive penalty of termination.

¹⁰ Per Disciplinary matrix – a procedural violation strip search of a person has a mitigated penalty of 5 vacation days' forfeiture, a presumptive penalty of 10 vacation days' forfeiture, and an aggravated penalty of 20 vacation days' forfeiture.

¹¹ Per Disciplinary matrix – non-deadly force against another that results in physical injury has a mitigated penalty of 10 suspension days, a presumptive penalty of 10 suspension days + 10 vacation days' forfeiture, and an aggravated penalty of termination.

Case Four, Not Guilty Verdict 201910484 PO Gregory Acerra

In November 2019, at approximately 6:30 p.m. in Manhattan, the Victim, a White trans male in his early twenties was at attending an Anti-Police brutality protest. He was arrested and while being processed at the site of his arrest told Police Office Gregory Acerra [the Respondent] his preferred pronouns. The Victim was transported to an arrest processing site where PO Acerra misgendered the Victim by saying “it’s a she, it’s a girl, put it with the females”.

On December 21st, 2021, the Board substantiated one (1) total allegation: one (1) Offensive Language allegation for making remarks based on the Victim’s gender identity¹². APU filed and served Charges and Specifications with a penalty recommendation of ten (10) days’ vacation forfeiture. On October 3rd, 2022, a trial was held before ADCT Jeff Adler. On November 23rd, 2022, ADCT Adler issued his decision finding PO Acerra not guilty of the sole count. The decision was rendered after the implementation of the Disciplinary Matrix.

ADCT Adler found that “the majority of the interaction between Respondent and the arrestee, as captured in the BWC, appeared to be amicable...the arrestee acknowledged he felt dazed and confused following his arrest, yet did not have to answer questions about how that may have impacted his perception of what occurred afterward.” ADCT Adler found that “there is no indication from Respondent’s interactions with the arrestee at the arrest scene that he would later make the offensive statement” and that “I credit Respondent’s explanation that any such statements were inadvertent mistakes.” ADCT Adler found that “the BWC footage from the scene of the arrest shows Respondent treating arrestee with respect and professionalism, as he clarifies with him his preferred gender.”

ADCT Adler found PO Acerra not guilty on the sole count. On December 20th, 2022, the Police Commissioner upheld the not guilty verdict.

III. Treatment of APU Pleas

In the fourth quarter of 2022, the Department finalized five (5) pleas. The APU makes penalty recommendations for all cases in which Charges and Specifications are substantiated by the Board. The APU uses several factors to determine these recommendations, including, but not limited to a member of service’s (“MOS”) length of service, MOS rank, MOS disciplinary history, the facts of the instant case, the strength of the instant case, the vulnerability of the victim, the extent – if any – of injury to the number of Complainants, and the precedent cases of analogous charges. The APU penalty recommendations tend to be consistent for MOS who are similarly situated. The APU also uses the NYPD Disciplinary Matrix to account for the above listed factors and make penalty recommendations based upon the delineated penalty categories in the NYPD Disciplinary Matrix.

Pleas Closed		
		Pleas Closed At Discipline Level Below Agency Recommendations

¹² Per Disciplinary matrix – offensive language has a mitigated penalty of 10 days’ vacation forfeiture, a presumptive penalty of 20 days’ vacation forfeiture, and an aggravated penalty of termination.

Period	Plea Approved	Plea Penalty Reduced	Plea Set Aside, Discipline Imposed	Plea Set Aside, No Discipline Imposed
4 th Quarter 2019	1	0	0	0
1 st Quarter 2020	1	1	0	0
2 nd Quarter 2020	2	2	0	0
3 rd Quarter 2020	2	2	0	0
4 th Quarter 2020	0	0	0	0
1 st Quarter 2021	0	0	0	0
2 nd Quarter 2021	0	0	0	0
3 rd Quarter 2021	1	0	0	0
4 th Quarter 2021	0	0	0	0
1 st Quarter 2022	1	0	0	0
2 nd Quarter 2022	4	0	0	0
3 rd Quarter 2022	6	0	0	0
4th Quarter 2022	2	1	1	1

As seen in the chart above, in the fourth quarter of 2022 there were five (5) cases in which a guilty plea was agreed to by the CCRB.

Case One, Penalty Modified 201809651 SGT Dionicio Brito

In November 2018, at approximately 7:00 p.m. in Brooklyn, the Victim, a Black male in his late twenties was in police custody at a precinct. At the precinct Sergeant Dionicio Brito [the Respondent] authorized that the Victim be strip-searched. The Victim was taken to a cell by an officer where he was told to remove his shoes, shoelaces, and sweatpants. He was told to face a wall and put his hands over his head. The officer then proceeded to reach into the Victim's boxers and searched around his genitals and rectum.

On October 7th, 2019, the Board substantiated one (1) total allegation¹³: one (1) Abuse of Authority allegation against Sgt. Brito for strip-searching the Victim. On March 24th, 2022, before ADCT Jeff Adler, Sgt. Brito pleaded guilty to the sole allegation and agreed to accept twenty (20) vacation days forfeiture. On November 23rd, 2022, the Police Commissioner accepted the guilty plea but modified the penalty, lowering it to ten (10) vacation days forfeiture.

Case Two, Penalty Modified 201907401 PO Toniann Groth

In August 2019, at approximately 5:20 p.m. in Brooklyn, Victim 1 a Hispanic female in her twenties, Victim 2, a person in their mid-twenties, and Victim 3, a female in her mid-fifties were in their home when they heard a knock at the door. Victim 1 and Victim 3 answered the door, and an officer asked them if they had seen an individual. They stated that the individual was sleeping inside their apartment and the officer asked to enter the apartment. Victim 3 asked to see a warrant. The officer asked again to enter the apartment and Victim 3 once again asked to see a warrant. Police Officer Toniann Groth [the Respondent] then told Victim 3 and Victim 1

¹³ The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

that if they did not let them inside, everyone would be arrested stating “so he can step out now and deal with it, or we’re gonna come back and take the door with a warrant and you’re all gonna go for whatever you guys have in the apartment”, “you’re gonna go”, and “everybody’s gonna go.” The incident was captured on BWC.

On August 30th, 2021, the Board substantiated three (3) total allegations: three (3) Abuse of Authority allegations against PO Groth for threatening to arrest Victim 1¹⁴, Victim 2¹⁵, and Victim 3¹⁶. On March 24th, 2022, before ADCT Jeff Adler, PO Groth pleaded guilty to the three allegations and agreed to accept five (5) vacation days forfeiture. On September 2nd, 2022, the Police Commissioner accepted the guilty plea but modified the penalty, lowering it to a Command Discipline A with a penalty of five (5) vacation days forfeiture.

Case Three, Penalty Modified 201910130 PO Anthony Lamicella

In November 2019, at approximately 7:25 a.m. in Queens, the Victim, a White male in his mid-thirties was walking to his parked car. When he got to his vehicle Police Officer Anthony Lamicella [the Respondent] was standing in front of his vehicle talking to a cyclist. The Victim asked PO Lamicella if he could get to his car and PO Lamicella turned and yelled at the Victim to stay away from him and to take his hands out of his pocket. The Victim asked again if he could get his car and PO Lamicella told him to get on the sidewalk. The Victim complied and moved to the sidewalk and with his hands out of his pocket. The Victim stated that it was cold outside and put his hands back in his pockets. PO Lamicella continued talking to the cyclist and told the Victim to take his hands out of his pocket. The Victim told PO Lamicella that he had to get his car so that he could drive his son to school. PO Lamicella told the Victim that if he came close to him, he would write him a ticket for failing to comply with a lawful order.

On October 20th, 2021, the Board substantiated two (2) total allegations: two (2) Abuse of Authority allegations against PO Lamicella for stopping¹⁷ the Victim and threatening to issue the Victim a summons¹⁸. On April 21st, 2022, before ADCT Paul Gamble, PO Lamicella pleaded guilty to the two allegations and agreed to accept five (5) vacation days forfeiture and training. On December 15th, 2022, the Police Commissioner dismissed the guilty plea and did not impose any discipline on PO Lamicella.

¹⁴ Per Disciplinary matrix – enforcement action involving Abuse of Discretion or Authority has a mitigated penalty of 10 vacation days’ forfeiture, a presumptive penalty of 20 vacation days’ forfeiture, and an aggravated penalty of termination

¹⁵ Per Disciplinary matrix – enforcement action involving Abuse of Discretion or Authority has a mitigated penalty of 10 vacation days’ forfeiture, a presumptive penalty of 20 vacation days’ forfeiture, and an aggravated penalty of termination

¹⁶ Per Disciplinary matrix – enforcement action involving Abuse of Discretion or Authority has a mitigated penalty of 10 vacation days’ forfeiture, a presumptive penalty of 20 vacation days’ forfeiture, and an aggravated penalty of termination

¹⁷ Per Disciplinary matrix – an improper/wrongful stop and question of a person has a mitigated penalty of training, a presumptive penalty of 3 vacation days’ forfeiture, and an aggravated penalty of 15 vacation days’ forfeiture

¹⁸ Per Disciplinary matrix - enforcement action involving Abuse of Discretion or Authority has a mitigated penalty of 10 vacation days’ forfeiture, a presumptive penalty of 20 vacation days’ forfeiture, and an aggravated penalty of termination.

Case Four, Penalty Unmodified 201901679 PO Ernesto Bautista

In November 2018, at approximately 10:15 a.m. in the Bronx, the Victim, a Hispanic male in his mid-forties, stated that he was intoxicated when he entered and exited a deli. The Victim was met by officers as he walked towards a housing complex. He was handcuffed after a brief struggle with the officers. Police Officer Ernesto Bautista [the Respondent] removed a clear plastic wrap containing an apple from one of the Victim's pockets. PO Bautista dropped the apple on the ground. The Victim asked him why he dropped the apple on the ground and PO Bautista told him to "shut the fuck up". The Victim replied, "fuck you" and PO Bautista showed the Victim his middle finger and responded, "fuck you too". The Victim was seated on the curb while officers stood around him waiting for an ambulance. The Victim began to speak in Spanish and threatened to fight PO Bautista. PO Bautista responded in English "fuck you bitch" and "suck my dick". The Victim called PO Bautista a "fucking spick" and PO Bautista responded "you a spick too nigga. You are a spick, fuck you too." PO Bautista was told multiple times to stay away from the Victim. The ambulance arrived and the Victim was escorted to the ambulance by two officers. PO Bautista lifted the Victim from underneath his legs and thighs and slammed him onto the ambulance gurney. The incident was captured on BWC.

On November 25th, 2019, the Board substantiated eight (8) total allegations¹⁹: three (3) Discourtesy allegations against PO Bautista for acting discourteously toward the Victim, speaking discourteously to the Victim, gesturing discourteously to the Victim, four (4) Offensive Language allegations for making remarks to the Victim based upon his gender, making remarks to the Victim based upon his ethnicity, making remarks to the Victim based upon his race, one (1) Abuse of Authority allegation for making sexually suggestive remarks to the Victim, and one (1) Use of Force allegation for using physical force against the Victim. On March 23rd, 2022, before ADCT Jeff Adler, PO Bautista pleaded guilty to the eight allegations and agreed to accept eleven (11) vacation days forfeiture. On November 1st, 2022, the Police Commissioner upheld the guilty plea without modification.

Case Five, Penalty Unmodified 202003834 PO Michael Palmese

In June 2020, at approximately 9:00 p.m. in Manhattan, the Victim, a White male in his early thirties was working as a reporter. He was filming protest activities in the city. The Victim filmed officers arresting individuals who had looted a clothing store. Police Officer Michael Palmese [Respondent 1] approached an unidentified woman who was standing away from the protestors and told her "get the fuck out of here you piece of shit" and called some of the assemble civilians "fucking losers". The protestors were complying with police directives to move down the block when Police Officer Thomas Forojny [Respondent 2] approached the Victim and told him to "go the fuck home...I don't give a shit, go home." The Victim told PO Forojny that he was an essential worker and continued to move down the block per police directives. PO Palmese then approached the Victim and told him to "get the fuck out of here now...get the fuck out of here, you piece of shit".

¹⁹ The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

On June 10th, 2021, the Board substantiated four (4) total allegations: three (3) Discourtesy allegations against PO Palmese for speaking discourteously to an individual²⁰, speaking discourteously to individuals²¹, speaking discourteously to the Victim²², and one (1) Abuse of Authority allegation for interfering with the Victim's use of a recording device²³. On September 27th, 2022, before DCT Rosemarie Maldonado, PO Palmese pleaded guilty to the four allegations and agreed to accept eleven (11) vacation days forfeiture. On November 23rd, 2022, the Police Commissioner upheld the guilty plea without modification.

IV. Cases Retained by Police Commissioner

In the fourth quarter of 2022, the New York City Police Department ("NYPD" or the "Department") retained five (5) cases pursuant to Provision Two of the MOU between the CCRB and NYPD.

Provision Two of the MOU states:

in those limited circumstances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served.

Case One, Retained With Discipline 202003879 PO Andre Gaddy

In May 2020, at approximately 8:20 p.m. in Brooklyn, the Victim, a White female in her mid-twenties was marching in a protest. Multiple officers were present as the protestors marched through Brooklyn. The Victim saw a plastic bottle thrown towards officers and heard officers say "go, go, go." Multiple officers ran into the crowd and the Victim saw three officers body slam an unidentified female protestor to the ground. The Victim and one of her friends yelled at the officers to get off the unidentified protestor. Officers came towards them, one of them striking

²⁰ Per Disciplinary matrix – discourtesy has a mitigated penalty of 1 vacation day forfeiture, a presumptive penalty of 5 vacation days' forfeiture, and an aggravated penalty of 10 vacation days' forfeiture.

²¹ Per Disciplinary matrix – discourtesy has a mitigated penalty of 1 vacation day forfeiture, a presumptive penalty of 5 vacation days' forfeiture, and an aggravated penalty of 10 vacation days' forfeiture.

²² Per Disciplinary matrix – discourtesy has a mitigated penalty of 1 vacation day forfeiture, a presumptive penalty of 5 vacation days' forfeiture, and an aggravated penalty of 10 vacation days' forfeiture.

²³ Per Disciplinary matrix – interfering with a recording/recording device has a mitigated penalty of 10 vacation days' forfeiture, a presumptive penalty of 20 vacation days' forfeiture, and an aggravated penalty of 30 vacation days' forfeiture.

the Victim's friend in the head with a baton and Police Officer Andre Gaddy [the Respondent] striking the Victim on her back with his baton. The incident was captured on BWC.

On April 14th, 2022, the Board substantiated one (1) total allegation: one (1) Use of Force allegation against PO Gaddy for striking the Victim with his baton²⁴. On April 26th, 2022, the Police Commissioner retained the case and in lieu of Charges issued a Command Discipline A with a penalty of five (5) vacation days forfeiture against PO Gaddy stating that while "wrong, the actions of Police Officer Gaddy do not rise to the level of misconduct where the issuance of Charges and Specifics is warranted...the relative inexperience of Police Officer Gaddy, as well as his unblemished record with the Department, must also be considered when determining a commensurate penalty."

Case Two, Retained With Discipline 202004301 CPT Isaac Soberal

In June 2020, at approximately 7:50 p.m. in the Bronx, the Witness, a Black male in his mid-thirties was marching in an Anti-Police brutality protest. The Witness saw Captain Isaac Soberal [the Respondent] stand between two cars and use his baton to push an unidentified woman wearing a green hat. The Witness saw the woman say something to Cpt. Soberal and saw Cpt. Soberal put his baton sideways with both hands parallel to his chest and push the woman, causing her to fall to the ground. The incident was captured on cellphone video.

On February 7th, 2022, the Board substantiated one (1) total allegation: one (1) Use of Force allegation against Cpt. Soberal for striking an individual with his baton²⁵. On May 2nd, 2022, the Police Commissioner retained the case and in lieu of Charges issued a Command Discipline B with a penalty of ten (10) vacation days forfeiture against Cpt. Soberal stating that "to pursue Charges and Specifications against Captain Soberal would be detrimental to the Police Department's disciplinary process."

Case Three, Retained Without Discipline 202005664 PO Justin Pichon

In August 2020, at approximately 6:00 p.m. in Manhattan, the Witness, a White female in her early twenties was engaged in a protest along with at least twenty individuals with at least a line of officers present. The Witness saw Police Officer Justin Pichon [the Respondent] leave the line of officers and run up to an unidentified Black male protestor who was standing still with his hands up and his back to the line of officers. PO Pichon pushed the unidentified protestor and approached a second unidentified protestor who was standing with his arms crossed and his back to the crowd. PO Pichon grabbed the second unidentified protestor by his wrists and pushed him as well. PO Pichon pushed other protestors before returning to the line of officers. The incident was captured on BWC.

²⁴ Per Disciplinary matrix – non-deadly force against another that results in no injury has a mitigated penalty of 5 vacation days' forfeiture, a presumptive penalty of 10 vacation days' forfeiture, and an aggravated penalty of termination.

²⁵ Per Disciplinary matrix – non-deadly force against another that results in no injury has a mitigated penalty of 5 vacation days' forfeiture, a presumptive penalty of 10 vacation days' forfeiture, and an aggravated penalty of termination.

On April 21st, 2022, the Board substantiated two (2) total allegations: two (2) Use of Force allegations against PO Pichon for using physical force against the first²⁶ and second²⁷ unidentified protestors. On May 2nd, 2022, the Police Commissioner retained the case and chose not to impose any discipline on PO Pichon stating that “it would be detrimental to the Police Department’s disciplinary process.”

Case Four, Retained Without Discipline 202103954 PO Joseph Zerella

In June 2021, at approximately 11:30 p.m. in Brooklyn, the Victim, a Black male in his early twenties, was with a friend when they went into a deli to buy food. As they exited the deli and began walking, they saw an unmarked vehicle begin to follow them. From the passenger window of the vehicle, Police Officer Joseph Zerella [the Respondent] asked the Victim why he was using a cane. The Victim reached into one of his pockets to take out his cellphone to record PO Zerella, and some receipts fell out of his pockets as he pulled out the cellphone. The Victim picked up his fallen receipts and began recording PO Zerella. PO Zerella then exited his vehicle and approached the Victim and asked him “why are you picking up a gun?” The Victim denied having a gun. PO Zerella then asked him “do you know where the guns are?” When PO Zerella was interviewed by the CCRB about his questioning of the Victim specifically about guns, he denied that the gun question was in fact a question, even after he reviewed the cellphone video of him questioning the Victim.

On October 17th, 2022, the Board substantiated two (2) total allegations: one (1) Abuse of Authority allegation against PO Zerella for questioning the Victim²⁸ and one (1) Untruthful Statement allegation for providing a false official statement to the CCRB²⁹. On December 28th, 2022, the Police Commissioner retained the case and chose not to impose any discipline on PO Zerella stating that PO Zerella’s “overall statement was not an accusatory question under the relevant legal doctrine” and that “Police Officer Zerella’s subjective interpretation of his own statement cannot be characterized as a false statement.”

Case Five, Retained Without Discipline 201910774 SGT Nicholas Guzman

In December 2019, at approximately 1:00 p.m., in Manhattan, the Victim, a male in his mid-forties went to a precinct to obtain a copy of a police report relating to a dispute he had with another individual. The officer he spoke to acted discourteously towards the Victim. Sergeant Nicholas Guzman [the Respondent] was present when the interaction occurred. When interviewed by the CCRB about the incident, he testified that the officer had acted professionally towards the Victim which was in direct contrast with both how the Victim and the officer

²⁶ Per Disciplinary matrix – non-deadly force against another that results in no injury has a mitigated penalty of 5 vacation days’ forfeiture, a presumptive penalty of 10 vacation days’ forfeiture, and an aggravated penalty of termination.

²⁷ Per Disciplinary matrix – non-deadly force against another that results in no injury has a mitigated penalty of 5 vacation days’ forfeiture, a presumptive penalty of 10 vacation days’ forfeiture, and an aggravated penalty of termination.

²⁸ Per Disciplinary matrix – an improper/wrongful stop and question of a person has a mitigated penalty of training, a presumptive penalty of 3 vacation days’ forfeiture, and an aggravated penalty of 15 vacation days’ forfeiture.

²⁹ Per Disciplinary matrix – intentionally making a false official statement has a mitigated penalty of forced separation and a presumptive penalty of termination.

described the interaction. Sgt. Guzman's description of the officer's behavior was misleading to the investigation.

On October 16th, 2021, the Board substantiated one (1) total allegation: one (1) Untruthful Statement allegation against Sgt Guzman for providing a false official statement to the CCRB³⁰. On September 16th, 2022, the Police Commissioner retained the case and chose not to impose any discipline on Sgt Guzman stating that "Sergeant Guzman's description of the officer...cannot be characterized as a false statement, where it is merely a statement of opinion about another officer's general nature."

V. Dismissal of Cases by the APU

When while investigating a case, the APU discovers new evidence that makes it improper to continue to prosecute misconduct against a MOS, the APU dismisses the Charges against that Respondent. The APU did not dismiss any cases against an officer in the fourth quarter of 2022.

VI. Cases Administratively Closed by the Police Commissioner

In the fourth quarter of 2022, the Police Commissioner administratively closed eight (8) cases.

Case One, Administratively Closed 201802481 PO Michael Soto

This case is from the same incident described in Case Three (3) (from the Guilty Verdicts section), for Police Officer Michael Soto [Respondent 2]. In March 2018, at approximately 8:30 p.m. in the Bronx, Victim 1 – a fourteen-year-old Black male and Victim 2 – an eight-year-old Black male were walking home when they met up with two friends [Individual 1 and Individual 2] and Victim 3 – a brother of Victim 2. The Victims and their friends picked up some sticks and chased each other on the sidewalk. They were dropping the sticks as Victim 1 saw multiple police vehicles approach their group. One of the vehicles over a loudspeaker told the group to drop the sticks and get against a wall. Police Officer Justin Hoff [Respondent 1] exited one of the vehicles with his gun drawn as the group complied with the police directive. Police Officer Michael Soto [Respondent 2] and PO Hoff then frisked Individual 1 and Individual 2. The incident was captured on BWC.

On January 16th, 2019, the Board substantiated five (5) total allegations³¹: five (5) Abuse of Authority allegations against PO Soto for stopping Victim 1, Victim 2, Victim 3, Victim 1's friends [Individual 1 and Individual 2] and for frisking an individual. The APU filed charges and was informed by the Department that PO Soto resigned from the Department before further action could be taken.

³⁰ Per Disciplinary matrix – intentionally making a false official statement has a mitigated penalty of forced separation and a presumptive penalty of termination.

³¹ The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

Case Two, Administratively Closed 201806618 PO Joseph Gonong

In July 2019, at approximately 7:50 p.m. in Brooklyn, the Victim, a Black female in her early teens and another teenager were engaged in a verbal dispute on a playground while surrounded by their sisters. One of the teenager's sisters started flicking a lighter and the Victim's sister told her to call the police. Police Office Joseph Gonong [the Respondent] and another officer responded to the playground. PO Gonong stood between the Victim and the teenager that she had been arguing with. The teenager reached around him and slapped the Victim. The Victim attempted to hit the teenager back when PO Gonong put the Victim in a chokehold.

On April 24th, 2019, the Board substantiated³² two (2) total allegations: two (1) Use of Force allegations against PO Gonong for using a chokehold against the Victim and for restricting the Victim's breathing. The APU filed charges and was informed by the Department that PO Gonong resigned from the Department before further action could be taken.

Case Three, Administratively Closed 201909867 DTS Trent Narra

In October 2019, at approximately 5:30 a.m. in Manhattan, the Victim, a Hispanic male in his early twenties was inside his home with his girlfriend, his mother, his brother, and his cousin. The Victim was in his bedroom with his girlfriend when he heard people shout, "don't move" and "get down" from outside his bedroom door. His bedroom door was then forcibly opened by Detective Trent Narra [the Respondent] and another officer. The Victim asked the officers not to hurt him and his girlfriend. DTS Narra struck the Victim on the right side of his head with a ballistic shield which caused the Victim to collapse onto his bed. The Victim was tossed to the ground and handcuffed.

On November 18th, 2021, the Board substantiated one (1) total allegation: one (1) Use of Force allegation against DTS Narra for striking the Victim with a police shield³³. The APU filed charges and On September 19th, 2022, DCT Rosemarie Maldonado dismissed the sole allegation.

Case Four, Administratively Closed 202000634 PO Andrew Alvarado

In January 2020, at approximately 11:00 p.m. in the Bronx, the Victim, a Black male in his early forties was in his parked car with his daughter. They were waiting for his wife to return from a store. Police Officer Andrew Alvarado [the Respondent] and two other officers dressed in plain clothes approached their parked vehicle. The officers ordered the Victim out of his vehicle, and he complied. One of the officers searched his vehicle. The Victim asked why his vehicle was being searched. PO Alvarado told the Victim to calm down and patted his stomach. PO Alvarado also pushed the Victim's daughter. The incident was captured on BWC. When PO Alvarado was interviewed by the CCRB about pushing the Victim's daughter, PO Alvarado denied it. He was then shown cellphone footage that showed him pushing the Victim's daughter and he insisted that he did not have any physical interaction with the Victim's daughter.

³² The case was voted on before the implementation of the Disciplinary Matrix – as such, allegations will not have a recommended matrix penalty.

³³ Per Disciplinary matrix – non-deadly force against another that results in no injury has a mitigated penalty of 5 vacation days' forfeiture, a presumptive penalty of 10 vacation days' forfeiture, and an aggravated penalty of termination.

On January 21st, 2022, the Board substantiated two (2) total allegations: one (1) Discourtesy allegation against PO Alvarado for acting discourteously toward the Victim³⁴ and one (1) Untruthful Statement allegation for provided a false official statement to the CCRB³⁵. The APU filed charges and was informed by the Department that PO Alvarado resigned from the Department before further action could be taken.

Case Five, Administratively Closed 202003092 SGT Phillip Wong

In April 2020, at approximately 6:30 a.m. in Manhattan, the Victim, a Black male in his mid-thirties was on a train got into a fight with an unidentified man. As the train pulled into a station the Victim was escorted off the train by officers. Sergeant Phillip Wong [the Respondent] rear cuffed the Victim and walked him up to a flight of stairs. The Victim shouted that the handcuffs were hurting him and kicked his right leg backwards towards Sgt. Wong. Sgt. Wong took the Victim to the ground and placed both of his knees on the Victim's back and buttocks. The Victim said that he could not breathe, and Sgt. Wong said in response "I don't give a fuck! I don't give a fuck if you can breathe or not! Shut the fuck up!". The Victim tried to adjust his body and Sgt. Wong used his full weight to bounce up and down on the Victim's back. The Victim was then brought to his feet and was escorted by multiple officers out of the station. The incident was captured on surveillance video and BWC.

On February 22nd, 2022, the Board substantiated three (3) total allegations: one (1) Discourtesy allegation against Sgt. Wong for speaking discourteously toward the Victim³⁶ and two (2) Use of Force allegations for using physical force against the Victim³⁷ and for restricting the Victim's breathing³⁸. The APU filed charges and was informed by the Department that Sgt. Wong retired from the Department before further action could be taken.

Case Six, Administratively Closed 202003834 PO Thomas Foronjy

This case is from the same incident described in Case Five (5) (from the Plea section), for Police Officer Thomas Foronjy [Respondent 2]. In June 2020, at approximately 9:00 p.m. in Manhattan, the Victim, a White male in his early thirties was working as a reporter. He was filming protest activities in the city. The Victim filmed officers arresting individuals who had looted a clothing store. The protestors were complying with police directives to move down the block when Police Officer Thomas Forojny [Respondent 2] approached the Victim and told him to "go the fuck home...I don't give a shit, go home." The Victim told PO Forojny that he was an essential worker and continued to move down the block per police directives.

³⁴ Per Disciplinary matrix – discourtesy has a mitigated penalty of 1 vacation day forfeiture, a presumptive penalty of 5 vacation days' forfeiture, and an aggravated penalty of 10 vacation days' forfeiture.

³⁵ Per Disciplinary matrix – intentionally making a false official statement has a mitigated penalty of forced separation and a presumptive penalty of termination.

³⁶ Per Disciplinary matrix – discourtesy has a mitigated penalty of 1 vacation day forfeiture, a presumptive penalty of 5 vacation days' forfeiture, and an aggravated penalty of 10 vacation days' forfeiture.

³⁷ Per Disciplinary matrix – non-deadly force against another that results in physical injury has a mitigated penalty of 10 suspension days, a presumptive penalty of 10 suspension days + 10 vacation days' forfeiture, and an aggravated penalty of termination.

³⁸ Per Disciplinary matrix – application of a chokehold has a mitigated penalty of forced separation and a presumptive penalty of termination.

On June 10th, 2021, the Board substantiated two (2) total allegations: one (1) Discourtesy allegations against PO Foronjy for speaking discourteously to the Victim³⁹ and one (1) Abuse of Authority allegation for interfering with the Victim's use of a recording device⁴⁰. The APU filed charges and was informed by the Department that PO Foronjy resigned from the Department before further action could be taken.

Case Seven, Administratively Closed 202102845 PO Tarik Hunter

In May 2021, at approximately 2:15 p.m. in Manhattan, the Victim, a White male in early fifties walked past a precinct when he saw Police Officer Tarik Hunter [the Respondent] standing outside. The Victim asked PO Hunter how he felt about being a Black police officer. The conversation quickly became confrontational. PO Hunter tried to disengage from the conversation, but the Victim continued to talk to him. PO Hunter asked the Victim "do you need an ambulance sir? You need to go to the hospital?". The Victim replied that he was fine, and PO Hunter replied "I'm gonna call you an ambulance right now", "the way you're talking right now, you don't sound sane", "you sound emotionally disturbed". PO Hunter then called for an ambulance and told the Victim that he was being "racist and disorderly, and you're trying to incite something right now." An officer from the precinct came outside and approached the Victim. The Victim spoke with that officer for another fifteen minutes and then left on his own. The incident was captured on BWC.

On August 3rd, 2021, the Board substantiated four (4) total allegations: two (2) Abuse of Authority allegations against PO Hunter for threatening to remove the Victim to the hospital⁴¹ and for threatening to arrest the Victim⁴², one (1) Offensive Language allegation for making offensive remarks to the Victim based on his perceived mental state⁴³, and one (1) Discourtesy allegation for speaking discourteously to the Victim⁴⁴. The APU filed charges and was informed by the Department that PO Hunter retired from the Department before further action could be taken.

Case Eight, Administratively Closed 202104024 PO Patrick Lacruz

In June 2021, at approximately 10:00 p.m. in Queens, the Victim, a woman in her late twenties had called 911 to report that an ex-boyfriend had violated an order of protection. Multiple officers responded, including Police Officer Patrick Lacruz [the Respondent]. PO

³⁹ Per Disciplinary matrix – discourtesy has a mitigated penalty of 1 vacation day forfeiture, a presumptive penalty of 5 vacation days' forfeiture, and an aggravated penalty of 10 vacation days' forfeiture.

⁴⁰ Per Disciplinary matrix – interfering with a recording/recording device has a mitigated penalty of 10 vacation days' forfeiture, a presumptive penalty of 20 vacation days' forfeiture, and an aggravated penalty of 30 vacation days' forfeiture.

⁴¹ Per Disciplinary matrix – an improper/wrongful (threat of police/hospital removal) has a mitigated penalty of 5 vacation days' forfeiture, a presumptive penalty of 10 vacation days' forfeiture, and an aggravated penalty of 20 vacation days' forfeiture

⁴² Per Disciplinary matrix – enforcement action involving Abuse of Discretion or Authority has a mitigated penalty of 10 vacation days' forfeiture, a presumptive penalty of 20 vacation days' forfeiture, and an aggravated penalty of termination

⁴³ Per Disciplinary matrix – offensive language has a mitigated penalty of 10 days' vacation forfeiture, a presumptive penalty of 20 days' vacation forfeiture, and an aggravated penalty of termination.

⁴⁴ Per Disciplinary matrix – discourtesy has a mitigated penalty of 1 vacation day forfeiture, a presumptive penalty of 5 vacation days' forfeiture, and an aggravated penalty of 10 vacation days' forfeiture.

Lacruz prepared a report in response to the Victim's call. The officers left. PO Lacruz used the report to retrieve the Victim's personal phone number and messaged her on WhatsApp with his private phone number. PO Lacruz asked her if she was okay, and the Victim asked him to identify himself. He did so by exchanging Instagram profile names so that the Victim could see his photo. PO Lacruz then told the Victim that he wanted to get to know her better and the Victim responded that she was not interested in doing so.

On September 7th, 2021, the Board substantiated one (1) total allegation: one (1) Abuse of Authority allegation against PO Lacruz for propositioning the Victim⁴⁵. The APU filed charges and was informed by the Department that PO Lacruz resigned from the Department before further action could be taken.

VII. The APU's Docket

As seen in the following table, the APU's docket had significant growth in the fourth of 2022 compared to the fourth quarter of 2021. This can be attributed to the substantiation of Charges and Specifications of allegations arising from complaints filed during the summer protests of 2020, use of the Disciplinary matrix, and staffing shortages.

Cases in Open Docket⁴⁶					
Period	Start of Quarter	Received During Quarter	Closed During Quarter	End of Quarter	Growth
4 th Quarter 2019	123	23	20	126	2.4%
1 st Quarter 2020	122	5	8	119	-2.5%
2 nd Quarter 2020	119	21	23	117	-1.7%
3 rd Quarter 2020	115	3	6	114	-0.9%
4 th Quarter 2020	114	6	3	117	2.6%
1 st Quarter 2021	115	4	7	112	-2.6%
2 nd Quarter 2021	113	50	3	159	40.7%
3 rd Quarter 2021	151	65	14	198	31.1%
4 th Quarter 2021	193	51	19	223	15.5%
1 st Quarter 2022	223	133	4	352	57.8%
2 nd Quarter 2022	348	215	22	541	55.5%
3 rd Quarter 2022	540	102	15	628	16.8%
4th Quarter 2022	623	87	29	681	9.3%

⁴⁵Per Disciplinary matrix – sexual proposition/unwanted verbal sexual advances have a presumptive penalty of 30 suspension days + 1 year dismissal probation and an aggravated penalty of termination

⁴⁶ The number of cases in the open docket were updated to reflect additional data received from the Department with regards to the closure of long-standing cases.

VIII. Time to Serve Respondents

As can be seen in the following chart, the length of time the Department took to serve Respondents after the APU filed charges with the Charges Unit remained unchanged the third and fourth quarters of 2022. As of December 31, 2022, there were one hundred sixty-one (161) Respondents who had not been served with Charges. The average wait time for Respondents to be served charges between the third and fourth quarters in 2022 remained unchanged.

Time to Serve Respondents			
Period	Number of Respondents Served	Average Length to Serve Respondents	Average Length to Serve Respondents (Business Days)
4 th Quarter 2019	7	68	48
1 st Quarter 2020	10	129	92
2 nd Quarter 2020	18	62	44
3 rd Quarter 2020	16	88	63
4 th Quarter 2020	6	71	51
1 st Quarter 2021	2	66	47
2 nd Quarter 2021	13	20	14
3 rd Quarter 2021	46	22	15
4 th Quarter 2021	40	40	28
1 st Quarter 2022	39	27	19
2 nd Quarter 2022	134	38	27
3 rd Quarter 2022	67	24	17
4th Quarter 2022	68	24	17

We hope that the Commissioner will continue to uphold negotiated plea agreements without modification and reduce the amount of retained cases so that they have a full opportunity to be put before the tribunal.

Thank you for your consideration.

Sincerely,

Jonathan Darche
Executive Director

Cc: CCRB Acting Chair Arva Rice
Deputy Commissioner Rosemarie Maldonado
Department Advocate Chief Amy Litwin